

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                                                 |                                     |                           |                                                                                                                                                                                                            |
|---------------------------------------------------------------------------------|-------------------------------------|---------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Investigator:<br>Simon Wang                                                     | Team:<br>Squad #10                  | CCRB Case #:<br>201509531 | <input type="checkbox"/> Force <input checked="" type="checkbox"/> Discourt. <input type="checkbox"/> U.S.<br><input type="checkbox"/> Abuse <input type="checkbox"/> O.L. <input type="checkbox"/> Injury |
| Incident Date(s)<br>Tuesday, 11/03/2015 3:15 PM, Friday,<br>11/06/2015 12:00 AM | Location of Incident:<br>§ 87(2)(b) | 18 Mo. SOL<br>5/3/2017    | Precinct:<br>75                                                                                                                                                                                            |
| Date/Time CV Reported<br>Tue, 11/10/2015 8:24 AM                                | CV Reported At:<br>CCRB             | How CV Reported:<br>Phone | Date/Time Received at CCRB<br>Tue, 11/10/2015 8:24 AM                                                                                                                                                      |

| Complainant/Victim | Type       | Home Address |
|--------------------|------------|--------------|
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |

| Subject Officer(s)  | Shield | TaxID  | Command |
|---------------------|--------|--------|---------|
| 1. POM Marc Whirl   | 09207  | 937726 | 075 PCT |
| 2. POM James Argila | 15383  | 946752 | 075 PCT |

| Witness Officer(s)       | Shield No | Tax No | Cmd Name |
|--------------------------|-----------|--------|----------|
| 1. POM Lawrence Perrotta | 14195     | 943673 | 075 PCT  |

| Officer(s)           | Allegation                                                                                                                                 | Investigator Recommendation |
|----------------------|--------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------|
| A . POM James Argila | Discourtesy: On November 3, 2015, at the northwest corner of § 87(2)(b) and § 87(2)(b), PO James Argila spoke discourteously to § 87(2)(b) | A . Unsubstantiated         |
| B . POM Marc Whirl   | Discourtesy: On November 6, 2015, in front of § 87(2)(b) § 87(2)(b) PO Marc Whirl spoke discourteously to § 87(2)(b)                       | B . Unsubstantiated         |

### Case Summary

On November 3, 2015, at approximately 3:15 p.m., § 87(2)(b) was standing at the northwest corner of § 87(2)(b) in Brooklyn with a former neighbor of his whom he could only identify as “§ 87(2)(b).” Two police officers identified by the investigation as PO Marc Whirl and PO James Argila of the 75<sup>th</sup> Precinct in an unmarked vehicle pulled over. Though § 87(2)(b) did not recognize either officer, PO Argila called to § 87(2)(b) § 87(2)(b).

§ 87(2)(b) (Board Review 1). At that point, § 87(2)(b) § 87(2)(b) surmised that the two officers were involved in arresting him on that occasion. § 87(2)(b) § 87(2)(b)

§ 87(2)(b) PO Argila allegedly responded, “Over that bullshit?” (Allegation A) § 87(2)(b) § 87(2)(b) became upset and walked away from the police officers, who did not follow him. On November 6, 2015, at approximately 3:15 p.m., § 87(2)(b) was walking home with his § 87(2)(b) son when he saw PO Whirl in front of § 87(2)(b) in Brooklyn. PO Whirl appeared to be searching the ground. § 87(2)(b) turned to observe PO Whirl as he walked past. PO Whirl allegedly said to § 87(2)(b) “Don’t be fucking eyeballing me.” (Allegation B) § 87(2)(b) asked PO Whirl, “Who you talking to?” PO Whirl allegedly replied, “You heard me. You can go ahead and suck my cock.” (Allegation B). § 87(2)(b) saw PO Lawrence Perrotta of the 75<sup>th</sup> Precinct standing across the street and yelled to him, “You better talk to your partner.” PO Perrotta did not respond and § 87(2)(b) then walked away from PO Whirl. § 87(2)(b) was not arrested or issued any summonses.

Video footage from an NYPD ARGUS camera box was obtained for the November 6, 2015 incident, showing § 87(2)(b) and PO Whirl. There was no audio component of the video file. Video footage was also obtained from a liquor store security camera, which did not show either incident. There was no video footage of the incident on November 3, 2015.

### Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of February 1, 2016, an enquiry to the Office of the New York City Comptroller indicated that § 87(2)(b) had not filed a notice of claim for this incident.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

### Civilian and Officer CCRB Histories

- This is the first and only CCRB complaint filed by § 87(2)(b) (Board Review 3).

- PO Whirl has had 12 other CCRB complaints, involving 22 allegations made against him in his eleven year tenure at the NYPD. None of the complaints have been substantiated. Two allegations of discourteous language have been made against him. One allegation was closed as Unfounded and the other was closed as Complainant Uncooperative (**Board Review 4**).
- PO Argila has had three other CCRB complaints, involving 7 allegations made against him during his seven year tenure at the NYPD. None of the complaints have been substantiated. The only prior allegation of discourteous language was closed as unsubstantiated (**Board Review 5**).

### **Findings and Recommendations**

#### **Witness not Interviewed**

- § 87(2)(b) - § 87(2)(b) did not have any contact information or a last name for § 87(2)(b) whom he stated was a former neighbor who has moved away to an unknown address. § 87(2)(b) also stated that § 87(2)(b) is a § 87(2)(b) Hispanic woman who does not speak or understand English. Furthermore, § 87(2)(b) stated he did not believe § 87(2)(b) heard his interaction with the police officers.

#### **Allegations not pleaded**

- § 87(2)(g) [REDACTED]

#### **Allegation A - Discourtesy: On November 3, 2015, at the northwest corner of § 87(2)(b)**

**PO James Argila spoke discourteously to § 87(2)(b)**

It is undisputed that on November 3, 2015, at approximately 3:15 p.m., PO Argila and PO Whirl spoke to § 87(2)(b) at the northwest corner of § 87(2)(b). § 87(2)(b) had been standing there talking with a former neighbor he identified as § 87(2)(b) when PO Argila and PO Whirl pulled over. § 87(2)(b) did not recognize either PO Argila or PO Whirl. PO Argila asked § 87(2)(b) § 87(2)(b). At that point, § 87(2)(b) surmised that the officers were involved in his arrest. § 87(2)(b) PO Argila allegedly replied, “Over that bullshit?” § 87(2)(b) PO Argila allegedly adding, “Because you’re good for that.” § 87(2)(b) became upset at the officers and backed away from their vehicle challenging them to come out of the car and search him. Neither officer did, and § 87(2)(b) walked away from them.

According to PO Whirl and PO Argila, they pulled over at the intersection briefly in order to allow vehicles behind them to overtake them. PO Argila recognized § 87(2)(b) because he was one of the officers involved in arresting § 87(2)(b) as a suspect § 87(2)(b).

§ 87(2)(b)

PO Argila admitted that he asked § 87(2)(b) the status of the criminal charges. PO Argila denied that he responded to § 87(2)(b) by saying, “Over that bullshit?” because PO Argila did not believe § 87(2)(b)’s arrest was “bullshit.” PO Argila denied that he spoke discourteously to § 87(2)(b). PO Whirl also denied that PO Argila cursed while speaking to § 87(2)(b). Both officers stated that they did not stop § 87(2)(b) and allowed him to walk away.

§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **Unsubstantiated**.

**Allegation B – Discourtesy: On November 6, 2015, in front of § 87(2)(b), PO Marc Whirl spoke discourteously to § 87(2)(b)**

It is undisputed that § 87(2)(b) and PO Whirl encountered each other on the sidewalk in front of § 87(2)(b) on November 6, 2015. § 87(2)(g) § 87(2)(b) was pushing his § 87(2)(b) son in a stroller when he saw PO Whirl standing on the sidewalk in front of § 87(2)(b), looking on the ground. As § 87(2)(b) walked past PO Whirl, he turned to observe what PO Whirl was doing. § 87(2)(b) alleged that PO Whirl stated to him, “Don’t be fucking eyeballing me.” § 87(2)(b) asked PO Whirl, “Who you talking to?” PO Whirl allegedly replied, “You heard me. You can go ahead and suck my cock.” § 87(2)(b) stated that he then saw PO Perrotta, whom he recognized as a prior arresting officer, standing across the street from them. § 87(2)(b) yelled to PO Perrotta, “You better talk to your partner.” PO Perrotta did not appear to acknowledge § 87(2)(b) so § 87(2)(b) walked away. § 87(2)(b)

PO Whirl, PO Argila and PO Perrotta were on patrol together on November 6, 2015. PO Whirl was searching the ground on the north side of § 87(2)(b) for discarded contraband, while PO Argila and PO Perrotta were on the south side of § 87(2)(b). PO Whirl stated that § 87(2)(b) walked past him, muttering insults to him under his breath. PO Whirl stated that he said to § 87(2)(b) “You don’t have to be mad at me.” § 87(2)(b) proceeded to yell at PO Whirl, and PO Whirl stated that he responded verbally but did not recall what he said. PO Whirl denied that he told § 87(2)(b) “Don’t be fucking eyeballing me.” or that he told § 87(2)(b) “Suck my cock.” PO Whirl denied that he cursed or spoke discourteously to § 87(2)(b). PO Argila stated he did not hear what if anything PO Whirl said as he was across the street from them. PO Perrotta did not recall seeing § 87(2)(b) on November 6, 2015, though he remembered arresting § 87(2)(b) § 87(2)(b).

Video footage was obtained from ARGUS camera 6-1032 which is located at the northeast corner of § 87(2)(b), and faces east on the north side of § 87(2)(b).



201509531\_20151214\_1148\_DM.mp4

There was no audio recording on the video. At 3:21 p.m., PO Whirl appeared on camera walking alone eastbound on § 87(2)(b) in front of § 87(2)(b). PO Whirl's head is down and he appeared to be looking at the ground. § 87(2)(b) appeared on camera also walking eastbound approximately 4 feet behind PO Whirl while pushing a stroller with a toddler inside. As PO Whirl stopped to examine the pavement, § 87(2)(b) walked past him, turning back to look at PO Whirl as he did so. After walking past PO Whirl, § 87(2)(b) stopped while continuing to observe PO Whirl. PO Whirl continued walking eastbound while looking at the ground. Because he was facing away from the camera and his face cannot be seen, it cannot be determined from the video whether PO Whirl spoke to § 87(2)(b). § 87(2)(b) continued walking for a few feet, but then stopped again and turned to look at PO Whirl and appeared to speak and gesture to PO Whirl. PO Whirl continued to look at the ground, turning away from § 87(2)(b) at one point and did not appear to acknowledge § 87(2)(b). § 87(2)(b) appeared to yell towards the south side of § 87(2)(b), but the video does not show who or what was on the south side of the street. § 87(2)(b) then walked northbound on § 87(2)(b) out of camera view, while PO Whirl continued walking on § 87(2)(b) before crossing to the south side also out of camera view. In the one minute time-span in which PO Whirl and § 87(2)(b) appeared together in the video, at no point did PO Whirl appear to gesture at or speak to § 87(2)(b).

§ 87(2)(g)  
 It is therefore recommended that **Allegation B** be closed as **Unsubstantiated**.

Squad: 10

|               |                 |                   |       |
|---------------|-----------------|-------------------|-------|
| Investigator: | _____           | <u>Simon Wang</u> | _____ |
|               | Signature       | Print             | Date  |
| Squad Leader: | _____           | _____             | _____ |
|               | Title/Signature | Print             | Date  |
| Reviewer:     | _____           | _____             | _____ |
|               | Title/Signature | Print             | Date  |